



\$~46

\* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ **ITA 21/2023 & CM APPL. 1779/2023**

**PRO COMMISSIONER OF INCOME  
TAX (CENTRAL),**

.....Appellant

Through: Mr. Anurag Ojha, SSC with  
Ms. Hemlata Rawat, Mr. V.K.  
Saksena, JSCs, Mr. Dipak Raj  
& Mr. Subham Kumar, Advs.

versus

**MIS OMAXE LIMITED**

.....Respondent

Through:

**CORAM:**

**HON'BLE MR. JUSTICE YASHWANT VARMA**

**HON'BLE MR. JUSTICE DHARMESH SHARMA**

**ORDER**

% **07.01.2025**

1. Undisputedly, the tax effect which forms the subject matter of this appeal falls below INR 2 Crores and would thus not be liable to be continued in light of the provisions made in Circular No. 9/2024 dated 17 September 2024.
2. The appeal is, consequently, dismissed on the ground of low tax effect. The proposed questions of law are kept open to be urged and addressed in an appropriate case.

**YASHWANT VARMA, J.**

**DHARMESH SHARMA, J.**

**JANUARY 07, 2025/kk**